

NEW AUSTRALIAN HATE LAWS AND WHAT THEY MEAN FOR RACISM [PART 2]

The Australian Government has made sweeping changes to federal hate crime laws in response to recent antisemitic incidents. These changes were rushed through Parliament against expert recommendations and without broad community consultation. The NSW State Government has followed suit with its own suite of changes to NSW hate crime laws.

This is part two of our two-part explainer on these reforms. Part one outlines the scope of these reforms. Part two outlines the implications of these reforms as well as our recommendations.

Overview

The implications of the federal and NSW reforms to hate laws are broad-reaching and deeply concerning. The key implications of these reforms relate to:

1. **Federal and NSW reforms:** The criminalisation of “hate speech”;
2. **Federal reforms:** The introduction of minimum mandatory sentencing offences;
3. **NSW reforms:** The potential criminalisation of peaceful protests; and
4. **NSW reforms:** The selective protection of targeted groups.

Below we further explore the implications of these federal and NSW reform and outline our recommendations.

Criminalisation of hate speech

The federal reforms criminalise conduct that advocates or threatens force or violence against protected groups or members of those groups, capturing conduct that might result in force or violence. The revised Explanatory Memorandum to the federal bill asserts that these reforms aim to: ‘...combat the increasing prevalence of hate speech involving calls to force or violence, and expand protections for members of the Australian community who have been affected by the significant and sustained increase in hate-motivated violence in Australia...’¹ The NSW reforms criminalise conduct that incites hatred on the grounds of race.

The NSW Law Reform Commission, led by Chairperson and former Chief Justice of the NSW Supreme Court, The Hon. Tom Bathurst AC KC, has already recommended against the introduction of new or expanded criminal offences to address serious racial and religious vilification.²

In making this recommendation, the NSW Law Reform Commission made several observations including:³

- The need for criminal offences to be clear and consistently understood given the serious penalties they attract;

¹ Revised Explanatory Memorandum, Hate Crimes Bill 2025 1, 2.

² NSW Law Reform Commission, [Serious Racial and Religious Vilification](#) (Report No 151, November 2024).

³ Ibid.

- The imprecision of terms such as “hatred”, which gives rise to inconsistent understanding of the law in the community and arbitrary enforcement by police;
- The likelihood of these criminal offences reducing social cohesion rather than increasing it; and
- The likelihood of other unintended consequences of these criminal offences, including the disproportionate impact on marginalised groups.

While these observations were made in response to then proposed NSW reforms, they apply equally to the federal reforms.

The federal reforms also lower the “fault element” for these criminal offences. The fault element is the state of mind a person must have had to be found guilty of a particular criminal offence.

The pre-existing offences of urging force or violence (now advocating or threatening force or violence) required the fault element of “intention”. This would be established if the person specifically intended to urge (now advocate or threaten) force or violence.

These offences now only require “recklessness”. This would be established if the person:

- was aware there was a substantial risk the force or violence would occur against the group; and
- went ahead with the conduct even though it was unjustifiable to take that risk having regard to the circumstances known to the person.

“Intention” involves an objective assessment as to the mental state of the person based on evidence. “Recklessness” involves a subjective assessment about matters in respect of which reasonable minds can differ. This is especially problematic because:

- “force”, “violence”, “threaten”, “advocate” and “hatred” are undefined or ambiguous terms; and
- force or violence do not need to be carried out in order to establish this criminal offence.

These criminal offences therefore give rise to the risk of arbitrary enforcement by police, discriminatory treatment of marginalised groups and selective suppression of political expression on controversial issues.

Further, these reforms have occurred in a political climate that routinely conflates antisemitism with anti-State of Israel sentiment. Experts have long warned against this conflation,⁴ which serves to deflect criticism of the conduct of the State of Israel in the Occupied Palestinian Territories – conduct which the International Court of Justice ruled in January 2024 constitutes plausible genocide⁵ and which a UN Special Committee confirmed in September 2024 is

⁴ See, e.g., Peter Slezak, Denouncing Israeli violence is not anti-Semitism, *UNSW Newsroom* (8 January 2016).

⁵ *Application of the Convention on the Prevention and Punishment of the Crime of Genocide in the Gaza Strip (South Africa v Israel) (Provisional Measures)* [2024] ICJ Rep 192. See also Francesca Albanese,

consistent with the characteristics of genocide.⁶

The reforms do not clearly distinguish between conduct that amounts to criminal racial hatred (including criminal antisemitism) and conduct that amounts to legitimate political expression on controversial issues or otherwise.

Mandatory minimum sentencing offences

The Federal reforms introduce mandatory minimum sentencing for specific offences. Mandatory minimum sentencing requires judicial officers to impose minimum penalties for these specific offences including the public display of terrorist organisation symbols.

It is ordinarily the role of judicial officers, not politicians, to determine penalties for criminal offences and ensure any punishment fits the crime. Mandatory minimum sentencing undermines judicial independence (and, in turn, the individual's right to a fair right) and disproportionately impacts marginalised and overpoliced groups.

Echoing the sentiments of countless experts and community groups, the Law Council of Australia President, Juliana Warner, has warned that "...it is vitally important in challenging times to uphold rule of law principles and not adopt measures that risk serious injustice."⁷ Less than 18 months ago, the Australian Labor Party itself acknowledged that mandatory sentencing "...does not reduce crime but does undermine the independence of the judiciary, lead to unjust outcomes and is often discriminatory in practice."⁸

Further, Muslims are disproportionately and unjustly targeted under terrorism-related offences that now attract mandatory minimum sentencing and these new laws are likely to be no exception.⁹ This is especially problematic because:

- the term "prohibited terrorist organisation symbol" (at the federal level) is broadly defined and racialised and the term "terrorist organisation symbol" (at the NSW State level) is undefined; and
- the criminal offences of publicly displaying a "prohibited terrorist organisation symbol" or "terrorist organisation symbol" extend to publicly displaying a symbol that closely resembles said terrorist organisation symbol.

This creates significant ambiguity as to which symbols will attract the minimum penalty of one year imprisonment. Do these criminal offences capture a symbol that is argued to resemble a terrorist organisation symbol and is concurrently associated with a culture, ethnicity or nationality? Do these criminal offences capture a symbol that incorporates motifs or colours of

Report of the Special Rapporteur on the situation of human rights in the Palestinian territories occupied since 1967 - Genocide as colonial erasure, UN Doc A/79/384 (1 October 2024).

⁶ Special Committee to Investigate Israeli Practices Affecting the Human Rights of the Palestinian People and Other Arabs of the Occupied Territories, *Israeli practices and settlement activities affecting the rights of the Palestinian people and other Arabs of the occupied territories*, UN Doc A/79/363 (20 September 2024).

⁷ Juliana Warner, 'Mandatory sentencing is not the answer' (Media Release, 6 February 2025).

⁸ Australian Labor Party, 'Australian Labor Party National Platform' (Conference Paper, 49th National Conference, 17 August 2023), 46.

⁹ Australian Muslim Advocacy Network, Submission to the Legal and Constitutional Affairs References Committee, *Senate Inquiry into Far-Right Extremism Movements in Australia* (5 July 2024).

a prohibited terrorist organisation symbol? This ambiguity puts already marginalised groups at risk of unjust deprivation of liberty.

Beyond this, there is no evidence that mandatory sentencing laws reduce racial hatred or make communities safer.

Potential criminalisation of protests

The NSW reforms grant police power to issue move on directions for protests that occur in or near a place of worship. This restricts the right to peaceful assembly.

While the reforms incorporate an exception for ‘authorised’ public assemblies under the *Summary Offences Act 1988* (NSW), this exception captures assemblies authorised under ‘the Form 1 regime’, which is widely criticised for restricting planned peaceful assemblies.¹⁰ This exception also inevitably restricts spontaneous peaceful assemblies.

These reforms appear to be incompatible with the implied freedom of political communication enshrined in the Australian constitution. The implied freedom of political communication restricts the Commonwealth and State governments from making a law or taking an action that interferes with political communication unless the interference is adopted to achieve a legitimate aim and is ‘reasonably appropriate and adapted’ (in other words, proportionate) to advance that legitimate aim.¹¹ The reforms do not appear to satisfy this legal test.

These reforms are also incompatible with international human rights law. The right to spontaneous and planned peaceful assembly is critical in a democracy and enshrined in international human rights law.¹² While the right to peaceful assembly is not absolute, any restriction must be lawful, necessary and proportionate.

The restriction on the right to peaceful assembly by way of expanded police powers is not:

- *Lawful*: The expanded police powers are made by laws that are not sufficiently precise. “Near” is not defined – how “near” must a protest be to a “place of worship” for police powers to be enlivened? “Place of worship” is not clearly defined – does it include a premise (such as a school, university, workplace or hospital) that has a place of worship onsite? “Impede”, “hinder” and “harass” are not defined – Do they include activities outside or near a place of worship that routinely occur during peaceful assemblies such as chanting and holding placards? These ill-defined terms could result in arbitrary and discriminatory enforcement by police.
- *Necessary*: The expanded police powers are not necessary (or even helpful) to protect people of faith from hate crimes or to protect the right of people of faith to worship free of interference. There is no evidence that peaceful protests outside or near places of worship are linked to the hate crimes the reforms purport to address. Further, existing laws already empower police to issue move-on directions if an assembly threatens public safety or order.¹³

¹⁰ See, e.g., *Kvelde v State of New South Wales* [2023] NSWSC 1560.

¹¹ See, e.g., *Brown v Tasmania* (2017) 261 CLR 328.

¹² International Covenant on Civil and Political Rights, opened for signature 16 December 1966, 999 UNTS 171 (entered into force 23 March 1976) art 21; UN Human Rights Committee, *General Comment No 37: Article 21 (Right of Peaceful Assembly)*, UN Doc CCPR/C/GC/37 (2020) [70]–[73].

¹³ *Law Enforcement (Powers and Responsibilities) Act 2002* (NSW) s 1197.

- *Proportionate*: The expanded police powers are not proportionate to any competing right or freedom as they empower police to restrict any assembly near a place of worship even if the assembly poses no threat to public safety or order. Places of worship (in the strictest sense) are scattered across major cities. These expanded police powers can therefore significantly interfere with routes ordinarily accessed during public protests and demonstrations such as the vicinity of Sydney’s Town Hall Station, which is directly below a place of worship.

Experts and community groups have warned against the risks posed by these restrictions. For example, the Australian Religious Response to Climate Change, a multi-faith network committed to action on climate change, has asserted that public protests “...should not be conflated with harassing worshippers” and that “...restrictions on the right to protest should be kept to a minimum because of the importance of public protest actions for helping create a more ethical, just, peaceful and environmentally safe society...”¹⁴.

The timing of these reforms is particularly problematic in targeting ongoing protests and demonstrations responding to the “genocidal violence” perpetrated by the State of Israel in the Occupied Palestinian Territories.¹⁵

Selective protection

The NSW reforms grant protection against the incitement of hatred on the grounds of race.

It is undisputed as a matter of law that antisemitism is a form of racism.¹⁶ In line with the position of many race scholars, our position is that Islamophobia is also a form of racism. Notwithstanding this, the extent to which discrimination solely in respect of a person’s identity as a Muslim is treated as a form of racism is uncertain as a matter of law and needs to be tested in court.¹⁷

The NSW reforms therefore do not clearly protect Muslims. This flies in the face of countless recent violent attacks on Muslims and reports from the Islamophobia Register Australia that Islamophobic incidents have increased by over 500% since 7 October 2023.¹⁸

Recommendations

The Federal and NSW reforms run the risk of criminalising legitimate political expression and peaceful assembly, unjustly targeting marginalised communities and exacerbating divisions between communities rather than healing them. In doing so, these kneejerk political responses

¹⁴ Dr Doug Hewitt AM, Rev Dr Josephine Inkpin, Rev Dr Steve Bevis, Rabbi Jonathan Keren-Black OAM, Rev Meredith Williams, Ven Bhante Sujato Bikkhu, ‘Alopi Latukefu, Wies Schuiringa, Rev Dr Patrick McInerney, Jan Barnett rsj, Rev Andrew Collis, Gershon Nimbalker, and Thea Ormerod, ‘Faith call for pause on laws restricting protest near places of worship’, Australian Religious Response to Climate Change (Article) <

https://www.arrcc.org.au/faith_call_for_pause_on_laws_restricting_protest_near_places_of_worship>.

¹⁵ Francesca Albanese, *Report of the Special Rapporteur on the situation of human rights in the Palestinian territories occupied since 1967 - Genocide as colonial erasure*, UN Doc A/79/384 (1 October 2024).

¹⁶ See, e.g., *Kaplan v State of Victoria* (No 8) [2023] FCA 1092.

¹⁷ *Faruqi v Hanson* [2024] FCA 1264, [263] – [289].

¹⁸ Islamophobia Register Australia, ‘Islamophobia Register Australia Strongly Condemns Vile Anti-Muslim Graffiti’ (Press Release, 20 January 2025).

contribute to the problem of, rather than the solution to, the growing threat of racial hatred in Australia.

We urge the:

1. **Federal Government:** to **initiate an inquiry** into the passage of the *Criminal Code Amendment (Hate Crimes) Act 2025* (Cth) to mirror the inquiry initiated in NSW;
2. **Federal and NSW Governments:** to repeal the new laws because they will not curb racial hatred and they will likely perpetuate racial discrimination and division in the community (or alternatively, to **refer the new laws to a parliamentary committee** to properly scrutinise in consultation with experts and all affected community groups); and
3. **Federal and NSW Governments:** to appropriately expand **civil law protections** against racial discrimination and vilification to protect all racially marginalised groups from racial hatred, particularly Muslims.

It is imperative that any reforms strike an appropriate balance between competing rights and freedoms and achieve the expressed objective of curbing racial hatred.

Note: This explainer provides general information only. It is not legal advice. Please seek legal advice if necessary.